

granted, for attorneys' fees and costs in the amount of \$32,958.29 plus accrued interest since April 18, 2022 – April 18, 2026 in the amount of \$52,912.21, in addition to the judgment amount previously ordered of \$132,282.32. Plaintiff shall lodge with the court a proposed amended judgment.

6. 9:00 AM CASE NUMBER: C25-02941

CASE NAME: BRETT DALY VS. MICHELLE DALY

COMPLAINT

FILED BY: DALY, MICHELLE L.

TENTATIVE RULING:

The Court determines that this action concerns the internal affairs of a trust and orders the case transferred to the Probate Department to be assigned pursuant to its ordinary assignment and calendaring procedures. Accordingly, Defendants Lawrence A. Daly Jr. and Michelle L. Daly's Demurrer to Plaintiff Brett W. Daly's complaint is dropped from calendar without prejudice to Defendants' ability to raise these challenges in the Probate Department.

Background

In September 1975, Lawrence A. Daly Sr. and Charlotte Doyne Daly acquired title as joint tenants to real property at 1199 Ridgewood Drive, Concord, California 94518 (the "Property"). Following the dissolution of their marriage, Lawrence Sr. conveyed his full interest in the Property to Charlotte as her sole and separate property. On May 23, 1994, Charlotte executed the Charlotte Doyne Daly Revocable Living Trust, naming herself as Trustor and Trustee, and designating her three sons, Plaintiff Brett W. Daly, Defendant Lawrence Daly Jr., and Wayne W. Daly, as equal beneficiaries upon her death. On that same date, Charlotte also executed a will consistent with this equal testamentary distribution plan.

Between 1998 and 2002, title to the Property underwent multiple transfers. In August 1998, Charlotte, as Trustee of the 1994 Trust, executed an grant deed conveying the Property to Lawrence Jr. as his separate property. In November 2002, Lawrence Jr. reconveyed the Property to Charlotte as Trustee of the 1994 Trust. The same day, Charlotte, as Trustee, executed a quitclaim deed transferring the Property to Lawrence Jr. and Michelle Daly, as Trustees of the LJ Trust dated April 15, 2001, for no monetary consideration. In June 2011, Charlotte executed an "Estoppel Affidavit" purporting to affirm that the 2002 quitclaim deed was intended as an absolute conveyance.

Plaintiff Brett Daly alleges that Charlotte never intended to permanently divest herself of ownership or alter her estate plan providing equal shares to her three sons. Instead, Plaintiff asserts that Lawrence exercised undue influence, coercion, and manipulation over Charlotte to induce her to transfer the Property to his trust under the false premise that it was a temporary protective measure against creditor collection activity. Plaintiff further alleges that Lawrence's payoff of Charlotte's approximately \$100,175 mortgage was understood by Charlotte as a gift of family support rather than consideration for a purchase. Relying on the understanding that the family estate remained intact, Plaintiff allegedly invested over \$96,000 in maintenance and substantial home improvements to the Property while his son lived there as Charlotte's caregiver.

Charlotte died in May 2024. Plaintiff alleges he only discovered the transfer of the Property to the LJ Trust around the time of Charlotte's death, having previously been kept in the dark by Lawrence. Following the death, Lawrence asserted exclusive ownership of the Property and offered Plaintiff a

\$150,000 buyout in exchange for relinquishing claims, while threatening to dispose of the Property if Plaintiff would not agree.

Plaintiff filed this action on October 9, 2025 asserting causes of action for quiet title, cancellation of instruments, constructive trust, financial elder abuse, undue influence, unjust enrichment, fraudulent inducement, declaratory relief, and partition of real property.

Internal Affairs of the Trust

Under Probate Code section 17000(a), "[t]he superior court having jurisdiction over the trust pursuant to this part has exclusive jurisdiction of proceedings concerning the internal affairs of trusts." "Exclusive jurisdiction" under section 17000 "refers only to whether a matter should be heard in a superior court's probate department or in another department of that same superior court." (*Capra v. Capra* (2020) 58 Cal.App.5th 1072, 1084.) "It is intended that the department of the superior court that customarily deals with probate matters will exercise the exclusive jurisdiction relating to internal trust affairs provided by subdivision (a)." (Law Revision Commission Comments, Prob. Code, § 17000; see also *Saks v. Damon Raike & Co.* (1992) 7 Cal.App.4th 419, 429–430.)

"Proceedings concerning the internal affairs of a trust include, *but are not limited to*, proceedings for any of the following purposes: (1) Determining questions of construction of a trust instrument. (2) Determining the existence or nonexistence of any immunity, power, privilege, duty, or right. (3) Determining the validity of a trust provision. (4) Ascertaining beneficiaries and determining to whom property shall pass or be delivered upon final or partial termination of the trust, to the extent the determination is not made by the trust instrument. (5) Settling the accounts and passing upon the acts of the trustee, including the exercise of discretionary powers. (6) Instructing the trust. (7) Compelling the trustee to [do certain acts]." (Prob. Code § 17200(b), *emphasis added*.)

While the civil division may have jurisdiction over the elder abuse claims, some of Plaintiff's claims appear to be "internal affairs of a trust." The gravamen of the complaint is Lawrence Daly, Jr.'s asserted exercise of undue influence over Charlotte Daly during her life to obtain Trust property to which he was not entitled. (See Compl., ¶¶ 14–20.) The causes of action asserted in the complaint, including quiet title, cancellation of instrument, constructive trust, undue influence, etc., revolve around the internal affairs and administration of the Trust. The relief Plaintiff seeks makes this apparent, as he prays for an order cancelling the 2002 quitclaim deed and 2011 estoppel affidavit, imposing a constructive trust over the Property for the benefit of the beneficiaries consistent with the 1994 Revocable Living Trust, and declaring that he holds an equitable one-third interest under the Trust. (Compl., Prayer, ¶¶ B–E.)

The claims asserted in this case arguably implicate matters enumerated in Probate Code section 17200(b), including determining the existence or nonexistence of any power, duty, or right to maintain these claims as a remainder beneficiary (Prob. Code, § 17200(b)(2)) ascertaining beneficiaries and determining to whom the Property shall pass upon the termination of the Trust (Prob. Code, § 17200(b)(4)), and passing upon the lifetime acts and conveyances executed by the trust (Prob. Code, § 17200(b)(5).) Transferring this action to the Probate Department is therefore appropriate so that these issues can be resolved in the proper forum.

Disposition

This case is **ordered transferred** to the Probate Department, and Defendants' demurrer is **dropped**

from calendar without prejudice.

NOTE: Effective August 21, 2026, the matter is assigned for all purposes to Dept. 30, the Hon. Virginia George. The case will be on “To Set” on December 15, 2026, at 9:00 a.m. in Dept. 30.

7. 9:00 AM CASE NUMBER: C25-03537
CASE NAME: KARL BROWNEE VS. CALIFORNIA COMMUNITY HOUSING AGENCY
COMPLAINT
FILED BY: CITY OF ANTIOCH
TENTATIVE RULING:

The hearing on defendant’s demurrer is rendered moot by the Plaintiff’s filing of a First Amended Complaint on August 10, 2026.

8. 9:00 AM CASE NUMBER: C26-00207
CASE NAME: ANDREI ROMANENKO VS. ROMAN KALNYTSKYI
TO STRIKE COMPLAINT / CONT'D PER TR OF 7/10/2026
FILED BY: KALNYTSKYI, ROMAN
TENTATIVE RULING:

Before the Court is Defendant Roman Kalnytskyi’s special motion to strike the complaint of plaintiff Andrei Romanenko under Code of Civil Procedure section 425.16.

Factual Allegations and Background

Plaintiff Andrei Romanenko (“Plaintiff”) is an attorney who specializes in immigration and nationality law. In June 2022, Defendant Roman Kalnytskyi, (“Defendant”) retained Plaintiff to represent him in preparing and filing a form for immigration benefits in the U.S. for \$1,000. Plaintiff agreed to credit the \$1,000 fee for this work towards a future retainer agreement for representation in immigration court, if Defendant needed such representation later. In October 2022, Defendant retained Plaintiff to represent him in immigration court in removal proceedings for a flat fee of \$12,000. Plaintiff performed work for Defendant under the terms of the agreement.

In March 2024, Defendant terminated Plaintiff’s representation and requested a refund. Plaintiff accounted for the time spent on Defendant’s matter and issued a check for the balance of the unearned fees per his calculation. Defendant disagreed as to the amount that should have been returned.

On January 20, 2025, Defendant posted a one-star review on Google Maps with a lengthy description of his view of Plaintiff’s handling of his case and his problems therewith. (The specific statements at issue will be discussed in detail below.) Plaintiff emailed Defendant advising him that the review contained “untrue and defamatory statements” and requested that it be removed. Plaintiff also indicated that he would sue Defendant for defamation.

Thereafter, on February 13, 2025, Defendant posted a one-star review about Plaintiff on Yelp which contained statements Plaintiff believes were false and defamatory. On August 25, 2025, Defendant